

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: [REDACTED]	Team: Squad #05	CCRB Case #: 202400441	☒ Force ☒ Abuse	☒ Discourt. ☐ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Friday 01/12/2024 5:28 PM	18 Mo. SOL 07-12-2025	Location of Incident: West 104th Street and Broadway (in front of [REDACTED] Broadway)	Precinct: 24		
Date/Time CV Reported Fri, 01/12/2024 6:00 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Fri, 01/12/2024 11:38 PM		

Complainant/Victim	Type	Home Address
1. [REDACTED]	Comp/Victim	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Dawson Alvarez	18076	969478	024 PCT
2. PO Seturah Blease	21151	967777	024 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Abdul Jabbar	18404	961831	024 PCT
2. PO Shahel Miah	26604	965060	024 PCT
3. PO Christopher Kovaleski	25328	971110	024 PCT
4. PO Michael Savarese	23356	971225	024 PCT
5. PO Gabriela Cortez	06024	972587	024 PCT
6. PO Yina Flores	08557	968415	024 PCT
7. SGT Alan Hassel	02027	950571	024 PCT
8. SGT Brian Horner	02904	958706	024 PCT
9. PO Anthony Hernandez	29052	977179	024 PCT
10. PO Mark Kraljevic	15822	946604	024 PCT
11. PO Bryant Harinarain	18981	976175	024 PCT
12. PO Samantha Cortez	26910	965011	024 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Seturah Blease	Abuse of Authority: Police Officer Seturah Blease improperly used her body-worn camera.	A . Substantiated
B . PO Dawson Alvarez	Abuse of Authority: Police Officer Dawson Alvarez improperly used his body-worn camera.	B . Substantiated
C . PO Seturah Blease	Discourtesy: Police Officer Seturah Blease spoke discourteously to [REDACTED]	C . Unfounded
D . PO Seturah Blease	Force: Police Officer Seturah Blease used physical force against [REDACTED]	D . Within NYPD Guidelines
E . PO Dawson Alvarez	Other Possible Misconduct Noted: Police Officer Dawson Alvarez failed to prepare a memo book entry as required.	E . Other Possible Misconduct

Case Summary

On January 12, 2024, [REDACTED] filed this complaint in person at the 24th Precinct stationhouse. The CCRB received this complaint on the same day, under reference #2024JAN12-02.

On January 12, 2024, at approximately 5:28 p.m., [REDACTED] approached the aftermath of a collision between a taxi and a bicyclist on the northeast side the intersection of West 104th Street and Broadway in Manhattan. Upon arriving at the scene, PO Seturah Blease and PO Dawson Alvarez of the 24th Precinct failed to activate their body-worn cameras (**Allegation A-B: Abuse of Authority, substantiated**). PO Blease allegedly yelled, “Back the fuck up,” at [REDACTED] (**Allegation C: Discourtesy, unfounded**). After a short verbal dispute, PO Blease pushed [REDACTED] (**Allegation D: Force, within NYPD guidelines**). PO Alvarez failed to properly prepare a memo book entry regarding this incident (**Allegation E: Other Possible Misconduct Noted**).

The investigation obtained BWC footage from various other officers who responded to the incident, but there was no BWC footage from PO Blease and PO Alvarez (BR 01-11, summarized at BR 12). All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

Findings and Recommendations

Allegation (A) Abuse of Authority: PO Seturah Blease improperly used her body-worn camera.

Allegation (B) Abuse of Authority: PO Dawson Alvarez improperly used his body-worn camera.

As noted above, PO Blease and PO Alvarez did not activate their BWCs during this incident. The investigation made a follow-up request to the NYPD BWC Unit specifically to confirm this fact (BR 15).

PO Blease testified (BR 13) that she and PO Alvarez responded to multiple 911 calls of a male cyclist struck by a vehicle. They were not the unit assigned to the job, but they were nearby and arrived first. PO Blease typically activates her BWC as soon as she exits her vehicle. At the time, she believed that she had activated her BWC for this incident. She did not learn that she had not activated her BWC until she was notified of her CCRB interview.

PO Alvarez testified (BR 14) that he tapped his BWC on as he exited his car and believed it had activated, but in hindsight he realized that he must not have pressed the button hard enough. He did not realize that his BWC did not activate until he received the CCRB interview notification.

NYPD Patrol Guide Procedure 212-123 (BR 16) states that officers are required to activate their BWCs prior to engaging in any police action. Police action is defined as, “Any police service, as well as law enforcement or investigative activity conducted in furtherance of official duties. Police action includes responding to calls for service, addressing quality of life conditions, handling pick-up assignments, and any self-initiated investigative or enforcement actions such as witness canvasses, vehicle stops, and Investigative Encounters.”

Both officers acknowledged that their BWCs should have been activated upon arriving at this incident, and both believed they must have unsuccessfully tried to activate their BWCs. Therefore, it is recommended that **Allegations A-B** be closed as **substantiated**.

Allegation (C) Discourtesy: PO Seturah Blease spoke discourteously to [REDACTED]

Allegation (D) Force: PO Seturah Blease used physical force against [REDACTED]

[REDACTED] stated (BR 17) that she was collecting the injured bicyclist's belongings when police officers arrived. PO Blease approached [REDACTED] and yelled at her to backup multiple times. [REDACTED] attempted to talk to PO Blease about the man's condition, but she continued shouting for [REDACTED] to back up. [REDACTED] asked PO Blease, "Why you so disrespectful?" In response, PO Blease got in [REDACTED]'s face and again ordered her to back up. [REDACTED] added that PO Blease *may* have said, "Back the fuck up." PO Blease then pushed [REDACTED] approximately three times, using both hands on the front of [REDACTED]'s shoulders. The pushes were hard enough that [REDACTED] felt that she could have fallen. There was no time between each push for [REDACTED] to react. [REDACTED] did not fall or sustain any injuries.

PO Blease testified that she was attending to the injured man on the ground when [REDACTED] approached the officers and said that she knew the man. PO Blease asked [REDACTED] for the man's name, and [REDACTED] responded that she did not know his name. PO Blease felt that [REDACTED] did not have any more useful information, so she asked [REDACTED] to wait on the sidewalk because they were closing off the entire intersection to make room for an ambulance and because it may have been a crime scene. [REDACTED] refused to leave after being told, "You need to get to the sidewalk, you need to move back," approximately five times by PO Blease, and an unknown number of times by other officers. PO Blease pushed [REDACTED] on her shoulders in order to get [REDACTED] to leave. [REDACTED] backed up one or two steps from the push but did not fall. [REDACTED] continued to refuse to leave, but eventually walked toward the sidewalk. PO Blease did not recall telling [REDACTED] to "back the fuck up," nor did she hear anyone else say that.

PO Kovalleski's BWC (BR 01) captured the interaction between PO Blease and [REDACTED]. [REDACTED] is standing near the injured man when PO Kovalleski asks her if she is involved in the scene. She tells him that she is because she knows the man. PO Kovalleski asks her for the man's name multiple times and each time she responds, "I know him." When [REDACTED] says, "I can stand here," PO Blease, who was kneeling next to the injured man, stands up and approaches [REDACTED] while saying, "No you don't, actually no you don't. Since you're not helping, you have to stand back." They go back and forth talking over each other. [REDACTED] tells PO Blease multiple times not to touch her, but the camera does not capture if PO Blease is touching her at the time. PO Blease continues telling [REDACTED] to back up and eventually makes a pushing motion with both arms, but neither her hands nor [REDACTED] are captured in the footage. At no point in the footage does PO Blease tell [REDACTED] to "back the fuck up."

NYPD Patrol Guide Procedure 221-01 (BR 18) states, "Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances."

PO Blease did not tell [REDACTED] to "back the fuck up" during this interaction. It is therefore recommended that **Allegation C** be closed as **unfounded**.

Given that [REDACTED] had been told multiple times by PO Blease and other officers that she needed to step away from the scene and refused to comply, PO Blease was justified in pushing [REDACTED] away from the scene. The investigation determined that PO Blease's minimal level of force was proportionate to the situation. Given that the force was not excessive and was justified under the circumstances, it is recommended that **Allegation D** be closed as **within NYPD guidelines**.

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